

26STCV03481 26STCV03481

County: los-angeles

Division: Civil Law and Motion

Department: 509

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Case Number: 26STCV03481 Hearing Date: July 17, 2026 Dept: 509

Foad Chavmeh v. Blue Star Insurance Company

CASE NO.: 26STCV03481

MOTION TO COMPEL CONSOLIDATED ARBITRATION

MOVING PARTY: Petitioner Foad Chavmeh

RESPONDING PARTY(S): Respondent United States Fire Insurance Company

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

Petitioner Foad Chavmeh (Petitioner) seeks to compel arbitration against respondent United States Fire Insurance Company (Respondent) arising from a dispute of insurance coverage. Petitioner was involved in a motor vehicle accident on July 4, 2023, and seeks reimbursement of damages arising from this accident from Respondent)

On March 18, 2026, Petitioner filed a notice of related cases ("NORC") in this case regarding, Mobilitas Insurance Company v. Foad Chavmeh, LASC Case. No. 25STCV31326 arising from the same July 4, 2023, motor vehicle accident. However, Petitioner did not file a NORC directly in 25STCV31326 despite his obligation to do so. (CRC Rule 3.300(d); See Rule 3.300 (h)(1)(A) ["Where all the cases listed in the notice are unlimited civil cases, or where all the cases listed in the notice are limited civil cases, the judge who has the earliest-filed case must determine whether the cases must be ordered related and assigned to his or her department."].) See also, Judge Randolph M. Hammock, To Relate or Not to Relate (Advocate, June 2022).

Now, Petitioner filed a motion to compel consolidated arbitration. Respondent opposed.

TENTATIVE RULING:

Petitioner's Motion to Compel Consolidated Arbitration is CONTINUED to September 17, 2026. Petitioner is ordered to properly file a NORC in 26STCV03481. That judge will rule on that NORC accordingly.

If this case is not related, then this Court will hear and determine the pending motion to compel. If it is related, then the judge in 25STCV31326 will hear and determine this motion.

In any case, Petitioner must effectuate proper service on Mobilias with the instant motion and notice of today's ruling. [FN 1]

IT IS SO ORDERED.

Dated: July 17, 2026 _____

Randolph M. Hammock

Judge of the Superior Court

FN 1 - Petitioner's counsel declares that "Mobilias has agreed to proceed with a consolidated arbitration that includes Blue Star." (Diarian Decl at ¶9.) However, this representation, does not by itself, submit Mobilias to this Court's jurisdiction in the instant case.

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.